INTERNATIONAL LEGAL BRIEF

DRAFT LAW NO. 15057

Equal protection for children with disabilities

Removing a legal inconsistency that makes a child’s level of protection depend on whether a parent is still a civilian or is already serving in the military.

THE LEGAL GAP

BEFORE MILITARY SERVICE

Article 23 of the Law on Mobilization treats raising a child with a disability under 18 as a distinct statutory ground for deferment.

AFTER SERVICE HAS BEGUN

Article 26 of the Law on Military Duty and Military Service adds a further condition: discharge depends on the absence of another person legally obliged to raise the child.

WHAT NO. 15057 WOULD DO

CHANGE

- Remove the additional ‘absence of another legally responsible person’ restriction for this defined category.
- Restore the independent legal significance of raising a child with a disability under 18.
- Align the logic of deferment before service and discharge after service begins.

NOT CHANGE

- It would not automatically discharge every service member who has a child with a disability.
- It would not remove the application process or documentary verification.
- It would not change the legal criteria for a child’s disability status.

≈2,000

SCOPE, NOT A FORECAST

Campaign materials cite Ministry of Defence operational data indicating approximately 2,000 service members have a child with a disability under 18. This is not the number of expected applications or discharges.

COMPATIBILITY MAP

Constitution of Ukraine

The concern is not that unconstitutionality has already been judicially established. The current rule raises serious compatibility concerns that require legislative and proportionality review.

ARTS. 3 & 8 **Dignity · rule of law**

State action is directed by the value of human life, health, dignity and security. Legal regulation must be coherent, certain and predictable.

The same child-related circumstance produces different protection before and after a parent enters service.

ARTS. 21 & 24 **Equality · non-discrimination**

All people are equal in dignity and rights; citizens are equal before the law and restrictions require objective justification.

Children with the same disability status may receive different protection solely because of a parent’s service status.

ART. 22 **No narrowing of guarantees**

New laws or amendments may not narrow the content and scope of existing rights and freedoms.

A recognised guarantee linked to raising a child with a disability loses independent effect once service has begun.

ARTS. 51 & 52 **Family · childhood · equal rights**

Family, childhood, motherhood and parenthood are protected by the state; children are equal in their rights.

A formal assumption that one remaining adult can meet all care needs may weaken the practical protection owed to the child and family.

64

MARTIAL LAW DOES NOT END THE ANALYSIS

Article 64 provides that the rights and freedoms protected by Articles 24, 51 and 52 may not be restricted even under martial law or a state of emergency. Defence needs remain vital, but any measure affecting children with disabilities still requires a specific, evidence-based and legally coherent justification.

LEGAL POSITION

The Joint Resolution was prepared on 22 July 2026 by legal and human rights experts, disability-rights advocates, healthcare, rehabilitation and social-sector professionals, and representatives of civil society and parent communities. It has since been endorsed by 848 individuals and legal entities, including the National Assembly of Persons with Disabilities of Ukraine, which unites more than 120 national and regional disability organisations, and the Network of Parent Organisations, comprising around 40 organisations. The Resolution concludes that the current condition appears inconsistent with the constitutional and international guarantees outlined above; this is a reasoned expert assessment, not a final court judgment.

APPLICABLE STANDARDS

The child is the rights-holder

The central question is not whether a family formally contains another adult. It is whether the child’s actual care, development, rehabilitation and family life are effectively protected.

UKRAINIAN LAW

Law on Protection of Childhood — Article 26

Prohibits discrimination against children with disabilities and provides special guarantees aimed at a full life and development, including necessary support.

Family Code — Articles 141 and 150

Mother and father have equal rights and duties toward the child; parents must care for the child’s health and physical, spiritual and moral development.

UN CONVENTION ON THE RIGHTS OF THE CHILD

ARTICLE 2

Protection against discrimination, including discrimination connected with a parent’s status.

ARTICLE 3

The best interests of the child must be a primary consideration in actions concerning children.

ARTICLE 23

A child with a disability has the right to special care and assistance responsive to the child’s condition and the circumstances of those responsible for care.

UN CONVENTION ON THE RIGHTS OF PERSONS WITH DISABILITIES

ARTICLE 5

Equality, non-discrimination and equal, effective legal protection.

ARTICLE 7

In all actions concerning children with disabilities, their best interests must be a primary consideration.

ARTICLE 23

Equal rights in family life and appropriate assistance to children with disabilities and their families.

WHY THE FORMAL TEST IS INSUFFICIENT

The existence of another legally responsible person does not establish that the child receives adequate 24/7 care, treatment, rehabilitation, habilitation, education, transport and emotional support. A rights-based assessment must look at actual needs and capacity — not family structure alone.

DECISION STANDARD

Defence needs and child rights must be reconciled

The state may assess defence risks. But a general assertion of possible personnel loss cannot replace evidence, a proportionality analysis and consideration of less restrictive means.

01

LEGITIMATE AIM

Identify the concrete defence objective served by the restriction.

02

EVIDENCE

Provide data on the affected group, likely applications and operational roles.

03

NECESSITY

Explain why the additional condition is necessary and why narrower measures would not suffice.

04

BALANCING

Assess the child’s best interests, equality and actual family-care capacity.

≈2,000

WHAT THE AVAILABLE FIGURE DOES — AND DOES NOT — SHOW

According to Ministry of Defence operational data cited in the campaign brief, approximately 2,000 service members have a child with a disability under 18. The available material does not establish how many would seek discharge, which positions they hold, or the measurable operational effect. Those are the data required for a responsible policy assessment.

REQUESTED ACTION

1. The responsible parliamentary committee should form and publish a reasoned position on Draft Law No. 15057.
2. The Ministry of Defence and General Staff should provide disaggregated data and a legally reasoned proportionality assessment.
3. Parliament should advance No. 15057 as a targeted correction of unequal protection, with ordinary verification safeguards preserved.

STATUS & PRIMARY SOURCES

Registered on 9 March 2026; included in the parliamentary agenda on 1 September 2026; under committee consideration as of October 2026.

Official Verkhovna Rada bill card · Joint Resolution and campaign materials

Constitution of Ukraine · Law on Military Duty and Military Service

Law on Mobilization Preparation and Mobilization

Advocacy and legal-policy brief. It does not constitute a court judgment or individual legal advice.